



CONTRACT

This Contract, is entered into and made effective as of **date** (6th April, 2021”), by and between:

TechSource LLC, with an office located in **DI HO, DIP 1, Dubai, UAE** (“Client”), and

Muhammad Ali, the contractor (“Freelancer”).

WHEREAS:

1. Client has a need for services; and
2. Freelancer has an interest in performing such services for Client; and
3. The parties wish to set forth the terms and conditions upon which such services will be provided to Client.

Both parties agree as follows:

Description of the Services

Implementation of the Change Request and functionality for Dubai Investments Corporate Governance System.

Scope

The scope will be all the issues reported by audit and the completion of FRD if any gaps exist.

Project Plan

Milestone	Tasks / Milestones	Required Hours	Estimated Completion Date
M1	Code/FRD Review	10	April 25th
M2	Nin Upload Issue	10	1st May
	Historical Reports	40	1st May
M3	Verifying and Fixing Data Models	20	5th May
	Verifying and Fixing Approval Workflow	30	8th May
M4	Testing /UAT	15	15th May
	Deployment	4	17th May
	Knowledge Transfer/Sign Off	8	18th May
	Estimated Effort Required in Hours	137	
	Period		15Ap - 30th May

Pricing/Rates

Total Contract Amount: AED 15,000

Payment Terms

Payment will be released against the milestones.

Milestone	Tasks / Milestones	Required Hours	Payment Based on Milestone
M1	Code/FRD Review	10	25% Advance
M2	Nin Upload Issue	10	
	Historical Reports	40	
M3	Verifying and Fixing Data Models	20	
	Verifying and Fixing Approval Workflow	30	
M4	Testing /UAT	15	50% UAT Completion
	Deployment	4	
	Knowledge Transfer/Sign Off	8	25% Upon Sign off
	Estimated Effort Required in Hours/Rate	137	15,000/- AED

Terms and Conditions

This Contract is governed by the signed NDA made on 4th November, 2019 between two parties.

The undersigned agree to and accept the terms of this agreement as of the effective date.

On behalf of TechSource..........Signature

Muhammad Ali.....Signature

Date:..........

Date:.....



ANNEXURE

SI No.	Details	Issue
1	CG IT Tool does not have the feature of generating declaration submission reports for previous periods. However, the required data are stored in the system, as confirmed by DI IT. When the abovementioned reports were provided by DI IT [data dump was exported to Excel], reports for previous periods included current Insiders & Related Parties. Some of them were not Insiders and Related Parties at the respective report period. Example: Insiders Declaration Submission Report for Q1 2020 includes 2 Board members who were appointed in June 2020.	
2	List of Reports with History details and filters - Quarterly - Insider Register - Related Party Register - Insider Declaration Submission Report - Insider Declaration Submission Detail Report - Insider NIN Report - Related Party Submissions Report - Related Party Submissions Detail Report - Insider Trading (NIN Lookup) - Quarterly Balance	All historic Data to be shown in reports.
3	Insider Trader NIN Look up Issue	Every quarter the values of the share holders are not matching, Whenever Eman Uploads the NIN Lookup Sheet the BUY AND SELL difference is added to share Holders Shares but due to logic issue – Every time she uploads it changes the value
4	Logic is defined in the system for reminder e-mails for “Awaiting approval RP transactions” [to send every 7 days to the Approver and to send after 30 days to CCAO].	
5	DIRC has entered 3 lease transactions with employees [selected from a dropdown list] in the CG IT tool for approval. Respective employees’ names were entered and the same are appearing in DIRC GM’s screen. However, these are appearing as ‘Corporate’ in DI IT staff’s screen and employees’ name are not shown. IT team does not know how the names are appearing in the screens of Approver and Group CS.	
6	Relatives Information filled in first quarter is missing in the next quarter	
7	Fix error in Related Party Register error of showing inactivated users.	

Expectation:

- Go through each FRD requirement and run through the system and ensure all the requirements are captured in the system.
- Complete the requirements that are part of FRD but not done or active in CG Tool.
- Include the Audit observation raised in attached documents.
- Test all the functionalities.



CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This Agreement is made on this 4th November, 2019 by and between:

M/s TechSource LLC having its office address at P.O. Box 49972, 5th Floor, DI House Building, DIP 1, and Dubai, United Arab Emirates.

And

M/s Muhammad Ali

The two parties shall be referred to as "**Party**" individually, and shall be referred to as "**Parties**" collectively.

RECITALS

Whereas the Parties hereto wish to discuss and exchange information with confidential contents, technical information, including know-how including all data, , descriptions, specifications, results of measurements, calculations, experiences, procedures, samples, knowledge, procedures including secret know-how, documents, materials, data, analyses, portfolio information, market data, details, and financial information which include details and information relating to each Party including details of their respective business, programs, products, applications and business topics, in whatever form which each of the Parties hereto consider highly confidential and proprietary.

NOW THEREFORE, the Parties hereto, intending to be legally bound in consideration of the mutual covenants and agreements set forth herein, hereby agree as follows:

1. Definitions

1.1. "**Confidential Information**" shall mean all information provided by a Party with respect to any information of that Party relating to its business programs, technical information, including know-how including all data, design, drafts, sketches, plans, descriptions, specifications, results of measurements, calculations, experiences, procedures, samples, knowledge, projects and procedures including secret know-how, products, applications, financial, analyses, portfolio information, market data, income or cash flow statements, and business topics, regardless of whether it is written, oral, audio tapes, video tapes, computer discs, machines, prototypes, designs, specifications, articles of manufacture, drawings, human or machine readable documents and which has been marked as "Strictly Confidential" or, in the case of oral information, which is followed by a written advice no later than three (3) days following the disclosure of the oral information, confirming that such information is confidential information of the Party providing the same. Confidential Information shall also include all information provided by the Parties to each other prior to the signing of this Agreement which has been marked as "Strictly Confidential". Confidential Information shall not include any of the following:

- (a) such information in the public domain at the time of the disclosure, or that which subsequently comes within the public domain without fault of the Receiving Party;

- (b) such information which was in the possession of the Receiving Party at the time of disclosure that may be demonstrated by business records of the Receiving Party was not acquired, directly or indirectly, from the Disclosing Party;
 - (c) such information which the Receiving Party acquired after the time of disclosure from a third party who did not require Receiving Party to hold the same in confidence and who did not acquire such information from the Disclosing Party; or
 - (d) such information as the Receiving Party can show was independently developed by an employee or agent of the Receiving Party and which can be verified by documentary or other competent evidence.
- 1.2. "Disclosing Party" shall mean the Party disclosing Confidential Information to the other Party relating to that Party's business, know-how, data, design, drafts, sketches, plans, descriptions, specifications, results of measurements, calculations, experiences, procedures, samples, knowledge, projects and procedures, programs, products, financial reports and business topics.
- 1.3. "Receiving Party" shall mean the Party receiving Confidential Information from the other Party relating to that Party's business, know-how, data, design, drafts, sketches, plans, descriptions, specifications, results of measurements, calculations, experiences, procedures, samples, knowledge, projects and procedures, programs, products, financial reports and business topics.

2. Use of Confidential Information

The Receiving Party agrees to:

- (a) receive and maintain the Confidential Information in confidence and to use such solely for the purpose agreed between the Parties;
- (b) examine the Confidential Information at its own expense;
- (c) not reproduce the Confidential Information or any part thereof without the express written consent of the Disclosing Party;
- (d) not, directly or indirectly, make known, divulge, publish or communicate the Confidential Information to any person, firm or corporation without the express written consent of Disclosing Party save where the Receiving Party is required by law or regulation or an order of court to make disclosure of the Confidential Information;
- (e) limit the internal dissemination of the Confidential Information and the internal disclosure of the Confidential Information received from the Disclosing Party to those officers and employees, if any, of the Receiving Party who have a need to know and an obligation to protect it; and
- (f) utilise its best efforts possible to protect and safeguard the Confidential Information from loss, theft, destruction, or the like.

3. Return of Confidential Information

All information provided by the Disclosing Party shall remain the property of the Disclosing Party. The Receiving Party agrees to return all Confidential Information to the Disclosing Party within fifteen (15) days of written demand by the Disclosing Party. When the Receiving Party has finished reviewing the information provided by the Disclosing Party and has made a decision as to whether or not to work with the Disclosing Party, the Receiving Party shall notify the Disclosing Party of its decision. If the Receiving Party is not interested in working with the Disclosing Party, the Receiving Party shall return all Confidential Information to the Disclosing Party save to the extent that the Receiving Party is required to retain any of the Confidential Information by any applicable law, rule or regulation or by any competent judicial, governmental, supervisory or regulatory body.

4. Disclosure Obligation

a. The parties undertake to keep secret all Confidential Information and not to pass it on to third parties. The parties agree to take necessary steps to prevent third parties being aware of such information.

b. The duty of confidentiality also applies to parties group companies, affiliates and licensees. If a party intends to pass information to an associated company, it shall obtain the express consent of the other party.

c. The parties shall use the information provided by the disclosing party exclusively for the agreed purpose and neither for its own purpose nor that of an external party.

d. The obligation of confidentiality applies irrespective of whether the information concerned is expressly classified as confidential or not.

5. Legal Consequences and Contractual penalty for non compliance

a. The parties are aware that any default committed by a party under this agreement will constitute an offence and can be punishable under the international criminal or civil law.

b. The parties shall defend, indemnify, and hold harmless each other from and against any and all claims, losses, damages, expenses, costs etc resulting from breach of any of its obligations stipulated in this agreement.

c. All losses, damages, expenses, liabilities and remedies under this Agreement shall be limited to the actual value or remedies as determined by a competent court of law having the jurisdiction.

6. Non-Assignable

This Agreement shall be non-assignable by the Receiving Party unless prior written consent of the Disclosing Party is received. If this Agreement is assigned or otherwise transferred with the written consent of the Disclosing Party, it shall be binding on all successors and assigns.

7. Governing Law & Arbitration

5.1 This Agreement and all questions relating to its validity, interpretation, performance and enforcement shall be governed by and construed in accordance with the laws of United Arab Emirates.

5.2 In the event of occurrence of any dispute between the parties arising out of execution or interpretation of this agreement, and the failure of the parties to resolve the same amicably, then the said dispute will be referred to the Dubai International Arbitration Centre (DIAC) in accordance with Rules and Regulation in force.

8. No License

Neither Party, by virtue of its disclosure of the Confidential Information, grants, either expressly or by implication, estoppel or otherwise, any right or license to any patent, trade secret, invention, trademark, copyright, or other intellectual property right to the other Party.

9. Binding Nature of Agreement

This Agreement shall be binding upon and inure to the benefit of the Parties hereto and their respective heirs, personal representatives, successors and assigns.

10. Provisions Separable

The provisions of this Agreement are independent of and separable from each other, and no provision shall be affected or rendered invalid or unenforceable by virtue of the fact that for any reason any other or others of them may be invalid or unenforceable in whole or in part.

11. Entire Agreement

This Agreement sets forth all of the covenants, promises, agreements, conditions and understandings between the Parties and there are no covenants, promises, agreements or conditions, either oral or written, between them other than herein set forth. No subsequent alteration, amendment, change or addition to this Agreement shall be binding upon either Party unless reduced in writing and signed by them.

12. Duration

The obligations contained in this Agreement shall remain in force for two (2) years from the signing date of this Agreement.

13. Notices

Any notice under this Agreement shall be in writing and signed by or on behalf of the Party giving it and may be served by sending it by prepaid recorded delivery or registered post at or to the address or facsimile number set out on the execution page of the Agreement (or such other address or facsimile number as a Party may notify in writing to the other).

14. Severability

If any provision of this agreement is or becomes invalid or if the agreement contains a loophole, then the legal validity of the remaining provision is not affected.

IN WITNESS OF THEIR AGREEMENT, the Parties have set their hands to it below effective the day and year first written above.


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FOR AND ON BEHALF OF
TechSource LLC


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FOR AND ON BEHALF OF
Muhammad Ali